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<u>Tentative Ruling</u>

Re: ***In the Matter of Vincente Gamboa***
Superior Court Case No. 26CU01498

Hearing Date: August 6, 2026 (Dept. 403)

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To deny the petition, without prejudice, for the reasons explained below. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders.

In the event that oral argument is requested the minor is excused from appearing.

Explanation:

The expedited petition submitted for minor claimant Vincente Gamboa does not include sufficient information regarding the injuries, medical treatment, and medical bills for the court to evaluate.

The expedited petition includes no evidence to support the petition and no proposed orders. The balance to the minor is "$-3,750." (Petn., Items 16, 17.) The petition appear to be both incomplete and inaccurate. As a result, the petition is denied without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: <u>SMC</u> on <u>August 6, 2026</u>.
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: ***Davis, et al. v. Hyundai Motor America, et al.***
Superior Court Case No. 23CECG04428

Hearing Date: August 6, 2026 (Dept. 403)

Motion: by Defendants to Strike or Tax Costs

Tentative Ruling:

To deny defendants' motion to strike the entire memorandum of costs filed by cross-defendants. (Code Civ. Proc. §§ 1032; 1033.5.) To grant defendants' motion to tax the memorandum of costs in part in the amount of $872 and deny in part, as discussed below. (*Ibid*.)

Explanation:

Defendants Hyundai Motor America, Hyundai Motor Company, Western Motors Merced, and PHA Co., Ltd., (hereinafter, "defendants") move to strike cross-defendants' Michael Bransley[1] and Donald Stallings (hereinafter, "cross-defendants") memorandum of costs filed on January 8, 2026, entirely on the grounds that the memorandum is (1) procedurally defective and premature, and (2) fails to provide sufficient evidence or accounting to support the costs claimed. Alternatively, defendants seek to tax $4,157.34 in costs.

A "defendant in whose favor a dismissal is entered" is a prevailing party. (Code Civ. Proc., § 1032, subd. (a).) Moreover, "[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).)

Parties to Which Costs are Sought

In the case at bench, defendants challenge the entirety of the costs memorandum filed on January 8, 2026, on the ground that the memorandum fails to identify the parties to which cross-defendants are seeking costs. However, defendants do not submit authority indicating that such identification is required in a costs memorandum. Nor is there such line item on the Memorandum of Costs, form MC-010, approved for usage by the Judicial Council of California. Cross-defendants need only "provide a short title of the case (1) stating the name of the first party on each side, with appropriate indication of other parties, and (2) stating that a cross-action or cross-actions are involved (e.g., "and Related Cross-action"), if applicable." (Cal. Rules of Court, rule 2.111(f).)

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[1] The court notes that Cross-Defendant Michael Bransey is referred to by multiple names by both parties in these papers: Michael Bransey, Michael Bransby, Michael Bransley. This ruling is made on the assumption that all three of these names refer to the same party.

Here, cross-defendants failed to adequately state the name of the first defendant in this case, i.e., Hyundai Motor America. Nor did they indicate the existence of a cross-action. However, it does appear that cross-defendants attempted to substantially comply with the rule of court. The information that was provided—the case number, an indication that there were further parties, and a short title of the case that was at least close to the name of the first defendant—"Hyundai Motors," was not so vague so as to preclude the court from associating the costs memoranda from the instant action. The purpose of California Rules of Court, rule 2.111 is to provide the court with sufficient information for filing purposes. Defendants do not otherwise show that noncompliance with the rule would prohibit the court from considering the merits of the paper itself.

Moreover, identification of an individual party on a costs memorandum would only be relevant in the case where apportionment of costs is required. Where a defendant is the prevailing party against multiple plaintiffs who sue jointly on a single liability theory, there is no need to apportion costs between or among the plaintiffs. "The costs are joint and several because the plaintiffs joined together (represented by the same attorney) in a single theory of liability against a defendant who prevailed." (*Acosta v. SI Corp*. (2005) 129 Cal.App.4th 1370, 1376.) Apportionment of costs is neither at issue nor relevant to the instant proceeding, because cross-defendants are seeking costs via a single memorandum against the parties who initiated suit against them, i.e., cross-complainants Hyundai Motor America and Hyundai Motor Company. Therefore, the memorandum of costs will not be stricken on this ground.

Timing of Memorandum of Costs

Next, defendants request the court strike the memorandum of costs as premature, because a notice of entry of judgment was never served.

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700 (a)(1).)

There is no record of a notice of entry of judgment being served. Cross-defendants concede that they did not serve such a notice on all parties, even though they were obligated to do so. (Code Civ. Proc. § 1034, subd. (a); Cal. Rules of Court, rule 3.1390.) However, the failure to serve such notice does not prohibit cross-defendants from seeking costs. The time limit for a costs memorandum is the earlier of 15 days after the service of notice of entry of judgment or dismissal **or 180 days after entry of judgment.** (Cal. Rules of Court, rule 3.1700 (a)(1).) Because nothing triggered the 15-day deadline, cross-defendants had 180 days from the entry of judgment to file their memorandum of costs. (Cal. Rules of Court, rule 3.1700 (a)(1).) Therefore, the motion is timely.

Supporting Documents and Allowable Costs

Code of Civil Procedure Section 1033.5 sets forth a list of allowable costs, as well as a number of costs that are not allowed. The court also has discretion to award other costs not specifically listed under section 1033.5 if it determines that they are reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (Code Civ. Proc. § 1033.5, subd. (c)(2).) "Finally, section 1033.5 requires that the costs awarded, whether expressly allowed under subdivision (a) or awardable in the court's discretion under subdivision (c), must be 'reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation' (§ 1033.5, subd. (c)(2)) and also be 'reasonable in amount.' (*Rozanova v. Uribe* (2021) 68 Cal.App.5th 392, 399, citations omitted.)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized." (*Ladas v. California State Auto. Assn*. (1993) 19 Cal.App.4th 761, 774, internal citations omitted.) Expenses that are "merely convenient or beneficial" to preparation for litigation are not recoverable. (*Id*. at p. 775.)

"We agree the mere filing of a motion to tax costs may be a 'proper objection' to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. However, '[i]f the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].'" (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131, citations omitted.)

Here, cross-defendants filed a summary of their memorandum of costs without specifically itemizing each cost sought until the opposition was filed. There is no record of a memorandum of costs worksheet. While the failure to do so does not bar cross-defendants from an award of costs, there is little to no information so as to allow defendants to properly object to the specific items requested. Therefore, the court will consider the mere filing of defendants' motion to tax cost as a proper objection to the entirety of the costs memorandum. As a result, defendants have sufficiently placed all costs sought at issue and shifted the burden of proof to the party claiming them. (*Ladas v. California State Auto. Assn*. (1993) 19 Cal.App.4th 761, 774-776.)

$1,050 in filing Fees. Filing and motion fees are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).) Cross-defendants provide copies of receipts to support their request for cross-defendants' initial appearance fees, $435 for each cross-defendant respectively for a total of $870, and $60 filing fees for three motions for a total of $180. (Serpik Decl., ¶ 2 and Ex. 1 thereto.) These costs appear to be reasonably necessary to the litigation and reasonable in amount, as they were incurred in order to file various documents in the case such as the answer, application for good faith settlement, and various motions. (*Ibid*.) Therefore, the court intends to deny the motion to tax the filing fees.

$2,730.95 in deposition costs. Costs for transcribing necessary depositions are allowable. (Code Civ. Proc., § 1033.5, subd. (a)(3)(A).) Cross-defendants provide invoices to support their request for the reporting costs for the depositions of cross-defendant Donald Stallings in the amount of $840.20, cross-defendant Michael Bransby in the amount of $1,018.75, and witness Victor Leon in the amount of $872. (Serpik Decl., ¶ 3 and Ex. 2 thereto.) Defendants concede that the depositions of cross-defendants were both reasonable and reasonably necessary to the conduct of litigation, but argue that the deposition of Mr. Leon was unreasonable. Defendants contend that cross-defendants failed to appear at Mr. Leon's deposition on April 24, 2025. (Ball Decl., ¶ 3 and Ex. 1 thereto.) Indeed, cross-defendants have made no attempt to show the reasonableness of Mr. Leon's deposition, and therefore, the court intends to tax the deposition costs in the sum of $872.

$986.60 in Court reporter fees. Court reporter fees are allowable. (Code Civ. Proc., § 1033.5, subd. (a)(11).) Cross-defendants provide invoices to support their request for the court reporter fees for the transcription of the hearings on July 30, 2025 and May 22, 2025, in the amounts of $156 and $830, respectively. (Serpik Decl., ¶ 4 and Ex. 3 thereto.) Defendants argue that the request and evidence in support thereof are vague, because the invoices provided do not reference two separate hearings, and instead, appear to both be charges for one hearing that purportedly occurred on May 1, 2025. While defendants are correct in their assertion, the court independently notes that it is likely that Mr. Serpik has inadvertently assumed the "Invoice dates" on both documents to be the date of the hearing(s), as opposed to the "Job date" of May 1, 2025 listed on the papers. Defendants do not otherwise contend that costs relating to the May 1, 2025 hearing to be unreasonable. Accordingly, the court has sufficient information to determine these costs to be reasonable and the court intends to deny the motion to tax the court reporter fees.

$1,248.74 in Electronic Filing or Service Fees. "Fees for the electronic filing or service of documents" are allowable. (Code Civ. Proc., § 1033.5, subd. (a)(14).) Cross-defendants provide documents to support electronic filing and court technology access fees incurred across more than 35 separate transactions to file and serve pleadings, motions, and oppositions between October 2024 and January 2026. (Serpik Decl., ¶ 5 and Ex. 4 thereto.) These costs appear to be reasonable and sufficiently supported by evidence. The court intends to deny the motion to tax the electronic filing or service fees.

The motion to strike the entirety of the costs is denied. However, the court intends to grant the motion to tax the costs associated with the deposition of Victor Leon, since cross-defendants have not provided sufficient information to show that this deposition was necessary or reasonable. Therefore, the court will tax this item in the amount of $872.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: SMC on August 5, 2026 .
(Judge's initials) (Date)